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What a Trump Department of Transportation could mean for bicycling and walking

November 12, 2024 / Caron Whitaker

(<https://bikeleague.org/author/caron-whitaker/>)

As we prepare for the second Trump Department of Transportation we have two things we can look at for direction. First, we have the first term of the Trump Administration, the discussions about an Infrastructure bill, discretionary grant awards, and how the previous administration set policy and implemented existing law. The second thing we can look at is Project 2025, a playbook for the next conservative administration, written by the Heritage Foundation. The Heritage Foundation has been significantly involved in transportation policy, funding, and advocacy work for the last few decades.



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The other thing to consider is what President-Elect Trump has

mostly been limited to electric vehicles, and then contradictory.

Until the summer, Trump voiced his plan to undo the Biden Administration's pro-electric cars stances. Then in August Trump said, "I'm for electric cars. I have to be, because Elon [Musk] endorsed me very strongly." The market seems to trust this latest pronouncement since Tesla's share price increased by 13 percent the day after the election.

On Transportation Bill Reauthorization

Role of the Administration

While Congress writes the laws, the president is often involved in the negotiations, and both the White House and DOT Advisors make the case for priorities. As an example, the Biden Administration weighed in heavily on the Safe Streets for All program and advocated for the \$5 billion in funding it received in the past bill.

Trump Administration and Reauthorization of the Transportation Bill

In his first term, the Trump Administration tried often to get a transportation bill moving — the joke in Washington was that every week was infrastructure week. However, the administration and Republican congressional leaders had a hard time coming together on how to pay for a transportation bill without increasing the gas tax. Currently, federal transportation funding raised through the gas tax and other transportation-related taxes generally pays for 80 percent of new projects with state or local governments responsible for the remaining 20 percent. The Trump Administration's proposal would have raised the state and/or local governments' share to 50 percent or more for transportation projects.

Project 2025

At this point, infrastructure investment seems to have fallen off the Trump Administration's list of priorities, however the Heritage Foundation has several recommendations that we could see come into the discussion as we get closer to the election.

Project 2025 echoes statements we've heard from Heritage for



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not in the federal interest and should not be eligible for federal

funds. Project 2025 also argues that the DOT should

discourage 'Vision Zero' projects as congestion creation.

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Discretionary Grant Awards

Role of the Administration

Discretionary grants are those like Safe Streets for All and RAISE where Congress sets high level criteria and guidelines in the law but the US DOT interprets the criteria and is responsible for awarding the grants.

Trump Administration

Even though Congress gives the Administration significant discretion in implementing grant programs, congressional leaders often expressed frustration with the Trump DOT under Secretary Chao on the DOT's process for discretionary grants. The Trump Administration infamously slow-walked Capital Investment Transit grants and did not meet the spirit of the congressional intent behind other grant programs.

When it came to BUILD grants (now referred to as RAISE grants), the Chao DOT prioritized projects that improved interstate commerce and were in rural areas. One of the frustrations of congress members is that the administration counted interstate projects that ran through a rural county as benefiting small communities economically even when there were no exits to those communities. The Chao DOT did fund several complete streets in each round of grants as an answer to this criticism.

Project 2025

Project 2025 calls for the end of discretionary grants, preferring that all federal transportation funds pass to state DOTs as large block grants.

Setting Policy, Guidance, and Regulation

Role of the Administration

One of the major roles of an administration is interpreting the law as written by Congress. This is a powerful role because transportation funds flow to states as reimbursement for

projects built. The guidance tells states what they have to do to



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For instance, **(<https://bikeleague.org/membership>)**

access — and in the 2021 IIJA, walking access — on bridge repair projects as long as it can be done for a reasonable cost.

Before the 2021 law, states could just state that providing access couldn't be done for a reasonable cost. The Buttigieg DOT set "reasonable cost" as up to 20 percent of the price of the project, and required a state DOT to show the math if they wanted to be exempted. A new administration could just allow a state DOT to make the claim the cost is unreasonable and not require any proof or explanation.

Congress also directs the US DOT National Highway Traffic Safety Administration to set car safety regulations for automatic emergency braking for pedestrians, technology to stop drunk driving or autonomous vehicles.

The DOT can also use its own resources and expertise to forward the administration's goals. The Buttigieg DOT also set internal policies and created external tools and guidance, such as the Equitable Transportation Community (ETC) Explorer (<https://experience.arcgis.com/experience/0920984aa80a4362b8778d779b090723/page/Homepage/>), to help state DOTs meet the Biden Administration's goals on climate and equity.

Trump Administration

One of the first actions of the Trump Administration was to create the 'one decision' process in permitting to make it easier to get projects off the ground. It also continued to push for increased streamlining of big projects and was slow to implement performance measures. It was the Trump Administration that started the practice of allowing state DOTs to set regressive safety performance measures, allowing a state to set a goal of increased fatalities over five years.

President Trump also set an executive order early in his presidency to say there could be no new regulation unless an old one was repealed. The result was we saw few, if any, new safety regulations out of NHTSA; instead the Chao DOT did promote some voluntary data-sharing agreements.

Project 2025

Project 2025 calls for fewer DOT rules and regulations, and



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guidance is only guidance and not something the LCI can

enforce.

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Project 2025 is bullish on autonomous vehicles (AVs), and calls on the US DOT to allow for more AVs to be sold. It also calls for the US DOT to remove the mandatory data sharing among AV companies now required by the Biden Administration.

How can Congress respond? I'll address that in my next blog.

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